

Defendant argues that monetary sanctions are mandatory because Plaintiff failed to serve its initial disclosure and documents within the statutory deadline and has not established good cause for its noncompliance.

While there is no published authority defining what constitutes “good cause” under section 871.26, the final Assembly Judiciary Committee Report on AB 1755, the enacting legislation for section 871.26, explains that the purpose of the discovery sanctions provision is to ensure “that attorneys faithfully adhere to these new discovery rules,” and “that the information most relevant to a lemon law case is disclosed early in the litigation process and without the need to argue costly discovery disputes before the court.” (Assem. Com. on Judiciary, Analysis of Assem. Bill No. 1755 (2023-2024 Reg. Sess.) as amended Aug. 30, 2024.)

Plaintiff timely served written initial disclosures within the 60-day statutory window on 1.09.26, but the undisputed evidence establishes that she produced no documents at that time. The service of written responses addressing each category did not necessarily satisfy the obligation to provide the documents listed in subdivision (f). Subdivision (f) also required Plaintiff to provide the “Sales or lease agreement” and a “Copy of current registration” by 1.09.26. (CCP § 871.26(b), (f)(1)-(2).) Unlike subdivision (f)(4), which permits a plaintiff to provide repair orders “or the location of where information relating to repair orders may be found,” subdivisions (f)(1) and (f)(2) do not contain an alternative location clause. Plaintiff did not produce either document by the deadline. The supplemental production still did not include the sales agreement or current registration. CCP § 871.26(f)(1) requires the *plaintiff* to provide the sales or lease agreement. CCP § 871.26(h)(5) separately requires the manufacturer to provide that agreement “if the manufacturer is in possession.” (CCP §§871.26(f)(1), (h)(5).) The overlapping subdivisions here however does not eliminate the other side’s obligation to produce.

Finally, Plaintiff has not shown good cause for the untimely production. The Declaration of attorney Lilly Pan does not identify what steps Plaintiff took before 1.09.26 or why Plaintiff could not produce timely. It is also silent as to what efforts Plaintiff made to obtain the sales agreement and current registration. Accordingly, the statute requires that monetary sanctions be imposed.

Defendant FCA’s Motion for Sanctions GRANTED.

Plaintiff’s Attorney directed to pay sanctions in the amount of \$1,500 within 15 business days of this order, pursuant to CCP § 871.26(j)(1).

OSC for 1.15.27 is vacated. Trial Setting Conference set for 3.15.27.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2600012	PEARCE VS ELLENZ	MOTION FOR TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION, SET TWO AS TO DEFENDANT TIMOTHY ELLENZ

Tentative Ruling: CCP §2025.450(b)(2), provides that a motion to compel further productions of documents “shall be accompanied by a meet and confer declaration under Section 2016.040, ...” (CCP §2025.450(b)(2).) CCP §2016.040 (a) provides that “[a] meet and confer declaration in support of a motion shall state facts showing a reasonable

and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion..” (CCP §2016.040.) It is clear from the meet and confer declaration that the parties did not meet and confer in person, by phone or videoconference.

The hearing on the motion to compel further responses to Requests for Production is continued to 10.27.26. The parties are ordered to ***meet and confer via in person, phone or video conference*** for the purpose of determining whether an agreement can be reached that would resolve the requests at issue in this motion. After meeting and conferring, the parties shall 10 days before the continued hearing date set above do one of the following:

- (1) Plaintiff vacate the hearing on the motion;
- (2) Parties file with the court a joint declaration stating the means by which the parties met and conferred and what issues, if any, the parties were able to resolve and what issues remain for the court’s ruling.

Whether or not the parties engaged in a reasonable and good faith meet and confer process will be considered by the court in ruling on the request for sanctions.

The court will not accept further briefing.

Additionally, Plaintiff has failed to submit proofs of service of his discovery motions. No proof of service was filed with the court indicating that Defendants had been served with either the motions or the Reply. Plaintiff is directed to submit proofs of service moving forward or potentially have a hearing vacated or a brief disregarded by the court for failure to show notice was given to opposing counsel.

Parties are also informed that no further discovery motions shall be permitted without request for an Informal Discovery Conference. Based on the history of this case, the court is requiring that a party seeking to address discovery issues must first submit a request with the court for an IDC. Information about that procedure is located on this department’s website.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2600012	PEARCE VS ELLENZ	MOTION FOR TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION, SET TWO AS TO DEFENDANT CALIFORNIA WINDOW & DOOR, INC.

Tentative Ruling: No tentative ruling. Hearing is continued.